



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

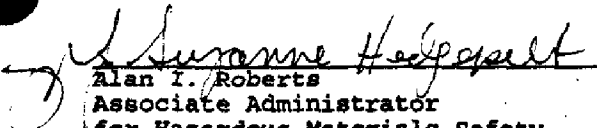
DEC 9 1994

DOT-E 10660 (EXTENSION)
ORIGINAL July 31, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations (HMR), DOT-E 10660 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. All other terms of the exemption remain unchanged.

This emergency extension, which will prevent serious economic loss, applies only to the party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.113. This emergency extension constitutes a necessary part of this exemption and must be attached to it. This emergency extension is not retroactive.

This emergency extension does not resolve proceedings which may be initiated by the Office of Chief Counsel, Research and Special Programs Administration, concerning operations which occurred between February 1, 1994, the expiration date, and March 4, 1994, the original issue date of the emergency extension, which were not in compliance with the HMR, and which were no longer authorized by any exemption.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 9 1994

(DATE)

Dist: FHWA FAA

EXEMPTION HOLDER

E. I. Du Pont de Nemours & Company, Inc.
Wilmington, DE

APPLICATION DATE

October 19, 1994



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DEC 9 1994

Alan I. Roberts
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Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA FAA

EXEMPTION HOLDER

Dupont Merck Pharmaceutical Company
Billerica, MA

APPLICATION DATE

October 19, 1994



U.S. Department
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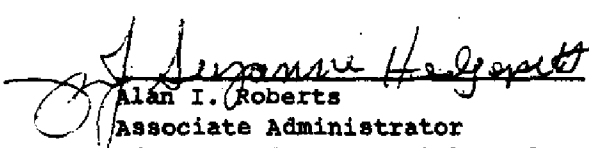
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SEP 22 1994


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: PHWA FAA

EXEMPTION HOLDER

APPLICATION DATE

DuPont Radiopharmaceuticals
North Billerica, MA

July 7, 1994

American Radiolabeled Chemicals, Inc.
St. Louis, MO

July 28, 1994

Amersham Corporation
Arlington Heights, IL

August 18, 1994

CONTINUATION OF DOT-E 10660 (EXTENSION)

SEP 22 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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Research and
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400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 28 1995

DOT-E 10660
(SECOND REVISION)

EXPIRATION DATE: June 30, 1996

1. **GRANTEE:** American Radiolabeled Chemicals, Inc. (ARC), St. Louis, Missouri. (See Appendix A of this exemption).
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of certain packages of hazardous materials that are labeled only for the primary radioactive material hazard class, even though the small amount of materials contained in the package also meet the definition of a secondary hazard. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Sections 172.402(d) and 173.4(a).
5. **BASIS:** This exemption is based on ARC's application dated July 28, 1995, submitted in accordance with 49 CFR 107.103 and the public process thereon. (See Appendix A of this exemption.)
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Radioactive material n.o.s.	7	UN2982	n/a
Radioactive material, special form, n.o.s.	7	UN2974	n/a
Radioactive material, fissile, n.o.s.	7	UN2918	n/a

DEC 28 1995

Continuation of DOT-E 10660 2nd Rev.

Page 2

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. MARKING - In addition to other required markings, each package offered for transportation under this exemption, shall be marked in contrasting figures at least one-half inch high "DOT-E 10660".

b. LABELING - Multiple hazard materials meeting the definition of radioactive material that require packaging, marking, and labeling as Type A or Type B quantities are excepted from the labeling requirements for the non-radioactive hazard as cited in § 172.402(d) provided:

(i) the materials meet all the requirements, except subparagraph (a)(1)(iv) of § 173.4, "Exceptions for small quantities"; or

(ii) the material is less than one gram of Sodium borohydride, a Division 4.3 material.

c. SHIPPING PAPERS - For packages transported under this exemption, the shipping papers shall include a statement that the nonradioactive hazards of the material in the package are within limits of 49 CFR 173.4.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. A copy of this exemption shall be carried with the shipping papers for each package offered for transport under this exemption and or a copy may be affixed to the package.

d. This exemption also constitutes an approval of the Competent Authority of the United States under Section 2.5, Chapter 2 of Part 3 of the International Civil Aviation Organization's Technical Instructions. This approval authorizes the transportation of packages of hazardous materials that are labeled only for the primary radioactive material hazard class, even though a small amount of material contained in the packages also meets the definition of a secondary hazard.

DEC 28 1995

Continuation of DOT-E 10660 2nd Rev.

Page 3

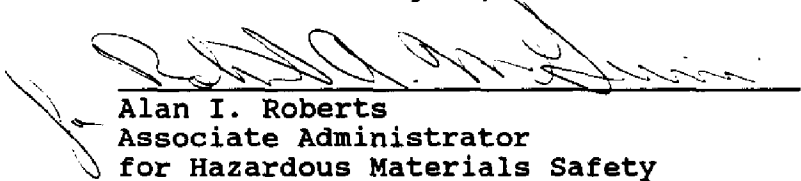
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo only aircraft, and passenger aircraft.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each aircraft or motor vehicle used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

DEC 28 1995


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FAA